

Tentative Rulings and Resolution Review Hearings
June 29, 2026
Department 64

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. Law and Motion

IN RE: CHRISTMAS

CASE NUMBER: 26CV-0210281

Tentative Ruling on Petition for Change of Name: Petitioner Micheal John Christmas seeks to change his name to Michael John Christmas. All procedural requirements of CCP §§ 1275 *et. seq.* have been satisfied. The Petition is **GRANTED**. All future dates are vacated, and the file closed upon the processing of the Decree Changing Name.

IN RE: MARTIN

CASE NUMBER: 26CV-0210283

Tentative Ruling on Petition for Change of Name: Petitioner Anthony Zachary Martin seeks to change his name to Anthony Martin Mondragon. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court will grant the Petition, vacate all future dates and close the file. If the Certificate of Publication is not provided, the Court will continue the hearing to August 17, 2026 at 8:30 am in Dept. 64; if the Certificate of Publication is not provided prior to the date of the continued hearing, the matter will be **DISMISSED**.

IN RE: PAINTER

CASE NUMBER: 26CV-0210270

Tentative Ruling on Petition for Change of Name: Petitioner Theresa Marie Painter seeks to change her name to Theresa Marie Hamilton. All procedural requirements of CCP §§ 1275 *et. seq.* have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.

WERTZ, ET AL. VS. GUINASSO

CASE NUMBER: 22CV-0200321

Tentative Ruling on Competing Motions for Attorney's Fees and Costs: Plaintiffs move for an order awarding attorneys' fees and costs totaling \$255,507.56. Defendant opposes the motion. Defendant also separately moves for an order awarding attorney's fees and costs of \$239,561.99,

less the judgment amount of \$24,174.63, for a total of \$215,387.36. Plaintiffs oppose Defendant's motion.

This case arises from the sale of residential real property in which Plaintiffs alleged several causes of action primarily related to a bat infestation and secondarily related to unpermitted structures. A final judgment in this matter was entered on March 6, 2026, after a 14-day court trial and after several amended statement of decisions had been issued. The Court ultimately found that Plaintiffs failed to sustain their burden of proving the claims regarding the bat infestation but awarded Plaintiffs \$24,174.63 regarding the unpermitted structures. Both parties argue that they are the prevailing party and are thus entitled to attorneys' fees and costs. In the interests of justice, the Court will continue this matter to be heard by Judge Stephen Baker who presided over the 14-day court trial and who therefore has detailed knowledge of the underlying facts and merits of the various claims. The matter is continued to **Monday, July 13, 2026, at 8:30 a.m. in Department 63** for further proceedings on the competing motions for attorneys' fees and costs. No further briefing is permitted. No appearance is necessary on today's calendar.

9:00 a.m. Review Hearings

BIANCHIN VS. ARIK, MD, ET AL.

CASE NUMBER: 25CV-0208843

This matter is on calendar for trial setting, the previous date having been vacated pursuant to stipulation and order. Plaintiff's CMC represents that all parties named in the complaint have been served, appeared, or were dismissed. However, on April 23, 2026, Plaintiff filed a Doe Amendment naming Dignity Health Medical Foundation, and Dignity Health Medical Group – North State. No proof of service of summons is on file for either party. The parties are ordered to appear today to provide a status of service and to set a future review hearing date for status and trial setting.

CAVALRY SPV I, LLC AS ASSIGNEE OF CITI BANK, N.A. VS. KAMENEV

CASE NUMBER: 25CVG-00250

This matter is on calendar for review regarding status of judgment/dismissal. Notice of Conditional Settlement was filed on December 24, 2025 indicating the matter would be dismissed no later than December 29, 2027. The matter is continued to **Tuesday, January 18, 2028 at 9:00 a.m. in Department 64** for status of dismissal. The Court intends to dismiss the matter without prejudice on January 18, 2028 per CRC 3.1385 unless good cause is presented. Any good cause must be presented at or before the January 18, 2028 hearing. No appearance is necessary on today's calendar.

DUNCAN, ET AL. VS. PATRICK INDUSTRIES, INC, ET AL.

CASE NUMBER: 24CV-0205151

This matter is on calendar for review regarding status of mediation. The parties have filed status statements indicating that the mediation was unsuccessful and that the matter is ready to be set for trial. The matter is exempt from case management time standards. Both sides have posted jury fees. The parties are ordered to appear to provide available trial dates and details of the proposed jury trial.

JONES, ET AL. VS. PACIFIC GAS & ELECTRIC, ET AL.

CASE NUMBER: 25CV-0208179

This matter is on calendar for review regarding status of service and status of default. At the last hearing on an OSC re Sanctions held May 18, 2026, the Court directed Plaintiff to file a status statement five days prior to today's hearing. No timely status statement has been filed. No proof of service is on file for Defendant Robyn McKenzie. Defendants Pacific Gas and Electric and William Bauer have filed an Answer. An appearance is necessary on today's calendar to provide a status of service on Robyn McKenzie and to set a future review hearing date for status and possible trial setting.

MCCOY, ET AL. VS. MILLER, ET AL.

CASE NUMBER: 25CV-0207500

This matter is on calendar for review regarding status of pleadings and possible trial setting. All Defendants have now filed Answers to the Second Amended Complaint. The matter is at issue and ready for trial setting. The Court designates this matter a Plan II case and intends to set trial no later than October 13, 2026. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees within that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates and details of the proposed jury trial.

ROSS VS. C&K MARKET, INC.

CASE NUMBER: 24CV-0205210

This matter is on calendar for trial setting. The parties have filed a joint status statement requesting the matter be set on Tuesday, January 5, 2027, and have provided good cause for setting beyond the 24-month disposition goal. Pursuant to the parties' joint stipulation, trial in this matter is set for **Tuesday, January 5, 2027 at 8:45 a.m. in Department 64.** The matter is also set for a Mandatory Settlement Conference on **Monday, November 23, 2026 at 1:30 p.m. in Department 64.** No appearances are necessary on today's calendar.

SCHWERDT, ET AL. VS. SCHLAPIA, ET AL.

CASE NUMBER: 24CV-0204563

This matter is on calendar for trial setting. Plaintiffs' status statement indicates the matter is ready to be set for trial. The case is exempt from case management time standards. Neither side has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees within that time will be deemed a waiver of the right to a jury. The parties are ordered to appear to provide the Court with available trial dates and details of the proposed jury trial.

SKAGGS VS. MITCHELL, ET AL.

CASE NUMBER: 24CV-0205961

This matter is on calendar for review regarding the appraisal and partition sale as set forth in this Court's March 20, 2026 Interlocutory Judgment Granting Partition by Sale. No status statement has been filed. An appearance is necessary on today's calendar to provide details of the status of the partition sale.

TAMMY HARRISON REVOCABLE TRUST VS. MATTALA

CASE NUMBER: 26CVG-00235

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code section 798.61. The clerk is ORDERED to close the file. No

appearance is necessary on today's calendar.

THE PEOPLE OF THE STATE OF CALIFORNIA VS. \$1,920.00 U.S. CURRENCY
CASE NUMBER: 26CV-0210554

This matter is on calendar for a status conference. Claimant Leland Foreman filed a Claim Opposing Forfeiture on April 30, 2026. No proof of service on the District Attorney is on file. No Petition for Forfeiture is on file. An appearance is necessary on today's calendar to provide a status of this matter, including regarding status of service on the DA. Both parties are ordered to appear at today's hearing.

WILSON VS. FASOLI
CASE NUMBER: 23CV-0201520

This matter is on calendar for trial setting. No status statements have been timely filed as required by the Court's April 7, 2026 Order. The Court notes that the parties previously stipulated to stay discovery in this matter pending resolution of a related criminal action in Alameda County. The Court has received no updated information regarding the status of that matter. The parties are ordered to appear today to provide a status of the case.